

STATE OF NEW YORK

1458--A

2025-2026 Regular Sessions

IN SENATE

January 10, 2025

Introduced by Sen. KAVANAGH -- read twice and ordered printed, and when printed to be committed to the Committee on Social Services -- committee discharged, bill amended, ordered reprinted as amended and recommended to said committee

AN ACT to amend the social services law, in relation to removing the requirement that rent arrears be repaid for social services districts located in a municipality with a population of five million or more

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 131-w of the social services law, as added by chapter 41 of the laws of 1992, is amended to read as follows:
2
3 § 131-w. Limitations in the payment of rent arrears. [~~Districts~~] Local
4 social services districts shall not provide assistance to pay rent
5 arrears, property taxes or mortgage arrears for persons not eligible for
6 home relief, aid to dependent children, emergency assistance to needy
7 families with children or emergency assistance for aged, blind and disabled persons, except to persons who are without income or resources
8 immediately available to meet the emergency need, whose gross household
9 income does not exceed one hundred twenty-five percent of the federal
10 income official poverty line and, for social services districts located
11 in a municipality with a population of less than five million, who sign
12 a repayment agreement agreeing to repay the assistance in a period not
13 to exceed twelve months. The districts shall enforce the repayment
14 agreements by any legal method available to a creditor, in addition to
15 any rights it has pursuant to this chapter. Local social services
16 districts located in a municipality with a population of five million or
17 more shall not require a recipient to repay assistance provided to pay
18 rent arrears. The department shall promulgate regulations to implement
19 this section which shall, among other things, establish standards for
20 the contents of repayment agreements for applicable social services
21

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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1 districts and establish standards to ensure that assistance is provided
2 only in emergency circumstances.
3 § 2. This act shall take effect immediately and shall be deemed in
4 effect on and after March 13, 2020 and shall apply to any assistance
5 provided to pay rent arrears on and after such date.